

#### 7.02 Authorized WIC Foods

**PURPOSE:** To establish state food authorization criteria based on the Code of Federal Regulations, while concurrently maximizing the nutritional value of the WIC food package and providing a variety of choices for the WIC client.

#### A. POLICY:

##### 1. Criteria

Foods (including formulas) authorized for the WIC Program must:

- a. Meet federal and state WIC requirements.
- b. Offer variety and choice for clients, taking into consideration cultural preferences and religious considerations.
- c. Have marketing strategies congruent with WIC goals.
- d. Be compatible with current dietary recommendations for maternal, infant and child health.
- e. Lack packaging confusion with non-approved products.
- f. Have a retail cost that is competitive with similar WIC-approved products.
- g. Be commonly used by WIC clients.
- h. Be available from WIC vendors throughout the state.
- i. Take into consideration feedback from stakeholders, such as clients, health care providers, local agency staff, vendors and food manufacturers, as well as availability, packaging, cost, product distribution, client acceptance and administrative feasibility.

##### 2. Authorization Process

The MDHHS WIC Division will use an established process for adding and removing foods from the Authorized Product List (APL).

- a. WIC Program food authorization criteria will be reviewed on a routine basis and adjusted as necessary, based on changes to Federal WIC regulations, industry/market changes, nutrition factors, cost and other pertinent information.
- b. Manufacturer requests for product review and authorization must be received by the MDHHS WIC Division to be guaranteed for consideration.
- c. The WIC Division will evaluate the APL for new products based on manufacturer requests and market/industry changes, as well as modified/discontinued products and make authorization determinations.
- d. Local agencies and WIC vendors will be notified of all authorized food changes and their effective date.

##### 3. Authorized WIC Foods

Authorized supplemental foods must be prescribed according to the client's category and nutritional need(s). For information related to client food packages, see Policies 7.04, Maximum Food Package; 7.01, Food Package Determination and Customization; and 8.06, Client Education on Using Food Benefits.

The requirements for Michigan WIC foods by food category are the following:

**a. Formula**

- i. The Michigan WIC Program contracts with a formula company to provide a specific brand of iron-fortified infant formulas. These formulas are identified as Class I on the Michigan WIC Authorized Formulas list. Iron-fortified infant formula must:
  - (a.) Be designed for enteral digestion via an oral or tube feeding.
  - (b.) Contain at least 10 milligrams of iron per liter of formula at standard dilution.
  - (c.) Supply 67 calories per 100 milliliters (approximately 20 kilocalories per fluid ounce at manufacturer's recommended dilution).
  - (d.) Be a complete formula not requiring the addition of any ingredient other than water prior to being served in a liquid state.
- ii. The Michigan WIC Program authorizes additional formulas for qualifying conditions with medical documentation. (See Policy 7.03 Food Package for Qualifying Conditions.) These formulas are identified as Class II or Class III on the list of Michigan WIC Authorized Formulas.
  - (a.) The Michigan WIC Program reserves the right to authorize and add to the list of Michigan WIC Authorized Formulas any USDA-approved Class II or Class III formulas that are indicated for our target population after evaluation and determination of medical necessity.
  - (b.) The Michigan WIC Program reserves the right to authorize non-contract, non-exempt infant formulas in circumstances where there is no nutritionally equivalent contract formula available.
  - (c.) The list of Michigan WIC Authorized Formulas may also be revised to reflect discontinuances of formulas, changes of manufacturer, size and name changes or any changes necessary to reflect the current formula market.
- iii. Concentrate and powder formulas must be provided whenever possible to contain cost.
- iv. Ready-to-feed (RTF) formula requirements:
  - (a.) RTF formula can be selected for one or more of the reasons below:
    - Documented unsanitary or restricted water supply.
    - Poor refrigeration.
    - Infant's caretaker having difficulty in correctly diluting powder or liquid concentrate formula.
    - Formula is manufactured in RTF form only.
  - (b.) See Policy 7.03, Food Package for Qualifying Conditions for additional reasons clients may receive RTF formula.
  - (c.) RTF formula must be assigned in the most economical container size on the list of Michigan WIC Authorized Formulas that meets the client's needs and is readily accessible.

**b. Infant Foods**

- i. Infant Cereal
  - (a.) Organic allowed.
  - (b.) Dry infant cereal without added DHA/ARA, fruit, infant formula, or other non-cereal ingredients which contains a minimum of 45 milligrams of iron per 100 grams of dry cereal are authorized.
  - (c.) The following grains of infant cereal may be included but are not limited to: barley, rice, oatmeal, mixed grain, multigrain, whole wheat and corn.

- (d.) Container sizes must be 8 oz or 16 oz only .
- ii. Infant Fruits
  - (a.) Organic allowed.
  - (b.) Any variety of single ingredient commercial infant fruit (e.g., apples) without added sugars, starches (i.e., rice starch) or salt (i.e., sodium).
  - (c.) Any variety mixed fruits and/or vegetables (e.g., apples and bananas, apples and sweet potatoes) without added flour, sugars, starches (i.e., rice starch) or salt (i.e. sodium).
  - (d.) Mixtures with cereal or infant food desserts (e.g., peach cobbler) are not authorized.
  - (e.) All infant fruits must be in packaging divisible by 4 oz. This includes 4 oz containers or multipacks of 1 oz, 2 oz or 4 oz.
  - (f.) Must be in a glass jar or plastic tub.
  - (g.) No squeeze pouches, yogurt blends or added DHA.
- iii. Infant Vegetables
  - (a.) Organic allowed.
  - (b.) Any variety of single ingredient commercial infant vegetables (e.g., sweet peas) without added flours, sugars, starches (i.e., rice starch) or salt (i.e., sodium).
  - (c.) Any variety mixed vegetables and/or fruits (e.g., mixed vegetables, sweet potatoes and apples) are allowed without added sugars, starches (i.e., rice starch) or salt (i.e., sodium).
  - (d.) All infant vegetables must be in packaging divisible by 4 oz. This includes 4 oz containers or multipacks of 1 oz, 2 oz or 4 oz.
  - (e.) Must be in a glass jar or plastic tub.
  - (f.) No squeeze pouches, dinners, added meat or DHA.
- iv. Infant Meat
  - (a.) Organic allowed.
  - (b.) Any variety of commercial infant meat, as a single meat ingredient, with added broth or gravy.
  - (c.) Added sugars or salt (i.e., sodium) are not allowed.
  - (d.) No infant food combinations (e.g., meat and vegetables) or dinners (e.g., spaghetti and meatballs) allowed.
  - (e.) All infant meat must be in a 2.5 oz container.. Multipacks are allowed.
  - (f.) No meat sticks or squeeze pouches.

**c. Fruits and Vegetables**

- i. Fresh Fruits and Vegetables
  - (a.) Organic allowed.
  - (b.) Any size and variety of fresh whole, cut, bagged or pre-packaged fruits and vegetables, without added sugars, fats, or oils.
  - (c.) Fresh herbs allowed.
  - (d.) Fresh fruits and vegetables not authorized:
    - (i.) Herb pastes, dried herbs or spices.
    - (ii.) Fruit and nut mixtures.
    - (iii.) Fruits and vegetables from salad bar, fruit baskets or edible flowers.
    - (iv.) Ornamental and decorative fruits and vegetables such as chili peppers on a string, garlic on a string, gourds or carving pumpkins.

- (v.) Potted plants or seeds.
  - (vi.) Pre-cut fruits and vegetables with added preservatives (e.g., ascorbic acid).
  - (vii.) Kits/bowls/trays with dips, dressings, sauces or other food items.
  - (viii.) Salsa.
  - (ix.) Juice or smoothies.
- ii. Frozen Fruits and Vegetables
  - (a.) Organic allowed.
  - (b.) Any size and variety of whole, cut or mixed frozen fruits and vegetables without added sugar, breading, butter, sauce, fat, oil, salt or seasoning.
  - (c.) Beans or peas such as lima beans and black-eyed peas are allowed.
  - (d.) The following are not authorized:
    - (i.) Smoothies with non-fruit or non-vegetable ingredients.
    - (ii.) Added meat, rice or pasta.
    - (iii.) Fries or tater tots.
    - (iv.) Soup.
    - (v.) Juice.
    - (vi.) Home-canned and home-preserved.
- iii. Canned Fruits and Vegetables
  - (a.) Organic allowed.
  - (b.) Any size and variety of canned fruits, including applesauce, juice or water pack without added sugars, fats, oils, or salt.
  - (c.) Any size and variety of canned vegetables, including tomatoes, without added fats, oils or salt.
  - (d.) May be packaged in metal, glass, plastic or pouch containers. Individual servings allowed.
  - (e.) May be regular or low sodium.
  - (f.) Green beans and peas, tomato paste, or puree allowed.
  - (g.) The following are not authorized:
    - (i.) Fruits packed in syrup.
    - (ii.) Added meat, rice or pasta.
    - (iii.) Artificial sweeteners (e.g., aspartame, Stevia, sucralose, or saccharine).
    - (iv.) Minced or pickled vegetables, relishes or ketchup.
    - (v.) Cranberry sauce, or pie filling.
    - (vi.) Creamed vegetables (e.g., creamed corn & spinach).
    - (vii.) Pizza or pasta sauce.
    - (viii.) Salsa.
    - (ix.) Beans or baked beans.
    - (x.) Juice or smoothies.
    - (xi.) Pouches labeled as infant/toddler foods.
    - (xii.) Home-canned and home-preserved.
- iv. Mature legumes (dry beans and peas) and juices are not authorized under the fruit and vegetable category but can be redeemed with other WIC benefits.

**d. Whole Grains**

- i. Bread, Buns or Rolls
  - (a.) Any size whole wheat bread, buns or rolls that meets the FDA standard of identity (21 CFR 136.180). All whole wheat bread, buns or rolls products must have whole wheat flour and/or bromated whole wheat flour as the only flour ingredients.
  - (b.) Any size whole grain breads, buns or rolls that meets the FDA standard of identity (21 CFR Part 136.110). All whole grain bread, buns or rolls products must be at least 50% whole grains with remaining grains being either enriched or whole grains.
- ii. Other Whole Wheat Bread Products
  - (a.) Must be labeled as whole wheat or whole grain.
  - (b.) Any size whole wheat bagels, English muffins, pita, sandwich thins or any other whole wheat bread products.
  - (c.) The following are not authorized:
    - i. Organic.
    - ii. Chips or crackers.
    - iii. Gluten free or keto products.
    - iv. Bakery Products.
- iii. Tortillas
  - (a.) Any size soft corn (white or yellow) or whole wheat tortillas.
  - (b.) Soft corn tortillas made from ground masa flour (corn flour) using traditional processing methods, e.g., whole corn, corn (masa), whole ground corn, corn masa flour, masa harina, and white corn flour.
  - (c.) Whole wheat flour must be the only flour in authorized whole wheat tortillas.
  - (d.) The following are not authorized:
    - i. Organic.
    - ii. Blue corn or white flour.
    - iii. Flavored.
    - iv. Chips or tostadas.
- iv. Corn Masa Flour and Corn Meal
  - (a.) Organic allowed.
  - (b.) Any size corn masa flour (white, yellow or blue) or corn meal (white, yellow or blue).
  - (c.) The following are not authorized:
    - i. Degerminated.
- v. Pasta
  - (a.) Organic allowed.
  - (b.) Any size whole wheat or whole grain pasta.
  - (c.) Any shape such as elbows, penne, rotini, spaghetti or spirals.
  - (d.) The following are not authorized:
    - (i.) Microwaveable pouches.
    - (ii.) Added sugar, fats, oils or salts.
    - (iii.) Made from rice, quinoa, flax, corn or vegetables.
    - (iv.) Frozen or refrigerated.

- vi. Brown rice and other intact whole grains
    - (a.) Any size brown rice, wild rice, quinoa, bulgar, whole-grain barley, millet, triticale, amaranth, buckwheat, teff, kamut, sorghum, wheat berries and other intact whole grains.
    - (b.) May be regular, instant or boil-in-bag.
    - (c.) The following are not authorized:
      - (i.) Bulk, tubs, individual cups or microwavable pouches.
      - (ii.) Added sugars, fats, oils, salt, herbs or flavorings.
      - (iii.) Frozen or refrigerated.
      - (iv.) Pearled grains.
      - (v.) Premium brands.
  - vii. Oats
    - (a.) Any size whole grain oats
    - (b.) The following types may be included but are not limited to rolled, steel cut, old fashioned and quick cooking.
    - (c.) The following are not authorized:
      - i. Organic.
      - ii. With sugars, fats, oils, salt or artificial sweeteners (e.g. saccharin, aspartame, or sucralose).
      - iii. Added nuts, seeds, fruit or other flavorings.
      - iv. Granola, Oat Flour or added protein.
      - v. Premium brands.
- d. Breakfast Cereal**
- i. Breakfast cereals must be ready-to-eat, instant or regular hot cereals as defined by FDA.
  - ii. Must contain a minimum of 28 milligrams of iron per 100 grams of dry cereal.
  - iii. Must contain no more than 21.2 grams of added sugars per 100 grams of dry cereal.
  - iv. 75% of the breakfast cereals authorized must have whole grain as the primary ingredient by weight and meet labeling requirements for making a health claim as a “whole grain food with moderate fat content.”
  - v. May contain nuts and fruit.
  - vi. Must be in the range of 9 to 36 oz package size for instant or regular hot cereals.
  - vii. Must be in the range of 11.8 to 36 oz package size for national brand and store brand cold cereals.
  - viii. Must not contain artificial sweeteners (e.g., aspartame, sucralose or saccharine).
- e. Eggs**
- i. Must be one dozen container only.
  - ii. Must be white shells only.
  - iii. May be any size (e.g., jumbo, extra-large or large).
  - iv. Must be cage-free or meet the requirements of the Michigan Cage Free Egg Law.
  - v. The following are not authorized:
    - (a.) Organic.
    - (b.) Free range or pasture raised.

- (c.) Low cholesterol.
- (d.) Pasteurized.
- (e.) Fortified/enriched with Omega-3, DHA or vitamin E.

**f. Tofu**

- i. Organic allowed.
- ii. Must contain  $\geq 100$  mg of calcium per 100 grams of tofu.
- iii. Must be in a 14-16 oz block only.
- iv. Must be block refrigerated.
- v. May be any firmness (e.g. soft, medium, firm, extra firm)
- vi. The following are not authorized:
  - (a.) Tofu with added fats, sugars oils, salts, herbs or seasonings.
  - (b.) Cubed.
  - (c.) Premium brands.

**g. Fish**

- i. Any brand or type of canned or foil pouch chunk light tuna, mackerel, pink salmon, or sardines.
- ii. Packed in water or oil and may include bones or skin.
- iii. Tuna and sardines may have added sauces and flavorings, e.g., tomato sauce, mustard, lemon allowed.
- i. The following are not authorized:
  - (a.) Organic.
  - (b.) Albacore/solid white tuna, Atlantic or sockeye (red or blueback) salmon, prime or smoked salmon fillets, king or jack mackerel.
  - (c.) Packs/kits with added crackers, condiments or utensils.
  - (d.) Fish with added grains or beans.
  - (e.) Fresh or frozen.
  - (f.) Premium brands.

**h. Legumes**

- i. Mature Dry Beans or Peas
  - (a.) Any type of mature dry beans, peas, or lentils in a dry packaged form including, but not limited to: black beans ("turtle beans"), black-eyed peas (cowpeas of the black-eyed variety, "cowpeas"), garbanzo beans (chickpeas), great northern beans, kidney beans, lima beans ("butter beans"), navy beans, pinto beans, soybeans, split peas, and lentils.
  - (b.) Mixtures of beans and peas are allowed.
  - (c.) The following are not authorized:
    - (i.) Organic.
    - (ii.) Beans with added fats, fruits, oils, meat, sugars, vegetables or seasoning packets.
    - (iii.) Premium brands.
- ii. Mature Canned Beans or Peas
  - (a.) Any brand and type of mature beans, peas, or lentils in a canned form including, but not limited to: black beans ("turtle beans"), blackeye peas

(cowpeas of the blackeye variety, “cowpeas”), garbanzo beans (chickpeas), great northern beans, kidney beans, lima beans (“butter beans”), navy beans, pinto beans, soybeans, split peas, and lentils.

- (b.) Mixtures of beans and peas are allowed.
- (c.) May be regular or low sodium.
- (d.) Fat free refried beans with no added ingredients allowed.
- (e.) Must be in a 15 -16 oz can or jar.
- (f.) The following are not authorized:
  - (i.) Organic.
  - (ii.) Beans with added fats, fruits, oils, meat, sugars or vegetables.
  - (iii.) Baked beans, pork and beans, chili beans or soups.
  - (iv.) Green beans, green/sweet peas, snap beans, yellow or wax beans.

### **iii. Peanut Butter**

- (a.) Any type (e.g., smooth, creamy, crunchy, extra crunchy).
- (b.) Must be in a 16 – 18 oz jar.
- (c.) The following are not authorized:
  - (i.) Organic.
  - (ii.) Mixed with other ingredients, (e.g., chocolate, honey, jelly, marshmallows or other flavorings).
  - (iii.) Reduced fat peanut butter or peanut spread.
  - (iv.) Peanut butter with added DHA or Omega 3.
  - (v.) Premium brands.
  - (vi.) Whipped.

### **iv. Nut or Seed Butter**

- (d.) Must contain a minimum of 5 grams protein per two tablespoon serving.
- (e.) May be smooth, creamy, crunchy, extra crunchy.
- (f.) Must be in a 12 – 18 oz jar.
- (g.) The following types of nut or seed butter may be included but are not limited to: almond, sesame, soy and sunflower.
- (h.) The following are not authorized:
  - (i.) Organic.
  - (ii.) Mixed with other ingredients, (e.g., chocolate, honey, jelly, marshmallows or other flavorings).
  - (iii.) Reduced fat butter or spread.
  - (iv.) With added DHA or Omega 3.
  - (v.) Premium brands.
  - (vi.) Whipped.

### **i. Milk**

- i. All cow’s milk must conform to FDA standard of identity for whole, reduced fat, low fat, or nonfat milks (21 CFR 131.110). Must be pasteurized. May be fluid, shelf-stable, evaporated, or dry. Whole milk, reduced fat, low fat and nonfat cow's milk types and varieties must contain at least 400 IU of vitamin D per quart (100 IU per cup) and 2000 IU of vitamin A per quart (500 IU per cup).



- (a.) Fluid milk must be quart size (32 ounces) or larger.
- (b.) The following types of milk are authorized:
  - (i.) Regular milk.
  - (ii.) Lactose Free Milk.
  - (iii.) Cultured Buttermilk.
  - (iv.) Non fat dry milk.
  - (v.) Evaporated milk.
- (c.) The following is not authorized:
  - (i.) Organic.
  - (ii.) Flavored milk.
  - (iii.) Raw milk.
  - (iv.) High-protein milk.
  - (v.) Evaporated filled milk.
  - (vi.) Unhomogenized milk.
  - (vii.) Ultra-filtered milk or UHT milk.
  - (viii.) Glass bottles.
  - (ix.) Premium brands.

**j. Yogurt**

- ii. Must be in 32 oz tubs, 4 oz 4-packs (16 oz total), or 4 oz 8-packs (32 oz total) 2 oz 8-pack tubes (16 oz total), or 2 oz 16-pack tubes (32 oz total) containers.
- iii. Must be pasteurized and conform to FDA standard of identity (21 CFR 131.200)
- iv. May be plain or flavored plain or flavored with  $\leq 30$  g of total sugars per  $\frac{3}{4}$  cup (6 oz) yogurt.
- v. May be non fat, low fat or whole fat milk.
- vi. The following are not authorized:
  - (a.) Organic.
  - (b.) Plant-based or Greek yogurt.
  - (c.) Yogurt with mix-in ingredients such as granola, candy pieces, honey or nuts.
  - (d.) Yogurt in bottles (drinkable) and pouches.
  - (e.) Artificial sweeteners (e.g., aspartame, Stevia, sucralose, or saccharine).
  - (f.) Premium brands.

**k. Cheese**

- i. Authorized domestic cheeses are Monterey Jack, Colby, Colby-Jack (Co-Jack), natural Cheddar, Swiss, Muenster, part-skim or whole Mozzarella, Provolone, pasteurized processed American, or blends of any of these cheeses.
- ii. Must be in a pre-packaged, 16 oz (1 LB) package.
- iii. Only sliced American cheese and String cheese without individual wrapping are allowed.
- iv. Low sodium, low fat and/or low cholesterol cheeses must meet the following criteria:
  - (a.) The product must be a real cheese.
  - (b.) Only variations of the types of cheeses listed above.
  - (c.) Cheeses that are labeled, low, free, reduced, less or light in the nutrients of sodium, fat or cholesterol must be domestically produced.
  - (d.) These modified cheeses must be comparable in nutritional value to their

standard cheese counterparts.

- v. The following are not authorized:
  - (a.) Organic.
  - (b.) Shredded, grated, cubed, crumbles, shapes or smoked.
  - (c.) Cheese foods, products, whips or spreads.
  - (d.) Variety wheels or variety packs.
  - (e.) Cheese with added ingredients, such as pimentos, peppers, seeds, meat, etc.
  - (f.) Cheese curds or raw milk cheese.
  - (g.) Sliced cheese except American.
  - (h.) Individually wrapped cheese slices, sticks or strings.
  - (i.) Plant-based cheese, Farmer cheese or goat cheese.
  - (j.) Imported cheese.
  - (k.) Fresh mozzarella.

**I. Plant-based Beverage**

- i. Organic allowed.
- ii. Must be fortified with the following minimum nutrient levels per 8 oz in accordance with fortification guidelines issued by FDA: 276 mg calcium, 8 grams of protein, 500 IU vitamin A, 100 IU vitamin D, 24 mg magnesium, 222 mg phosphorus, 349 mg potassium, 0.44 mg riboflavin, and 1.1 mcg vitamin B12.
- iii. Must contain  $\leq 10$  grams of added sugar per cup (8 oz) of plant-based beverage.
- iv. May be flavored or unflavored.

**m. Juice**

- i. No organic allowed.
- ii. Must be pasteurized 100% unsweetened fruit and/or vegetable juice.
- iii. Juice must contain a minimum of 30 milligrams of Vitamin C per 100 milliliters of single strength or reconstituted frozen juice.
- iv. May be fresh, from concentrate, frozen, canned, or shelf stable.
- v. May contain added calcium or fiber.
- vi. Container sizes must be 64 oz only.

**B. GUIDANCE:**

1. For the most current version of the Michigan WIC Food Guides in all available languages, please refer to the electronic copy on the WIC Foods Section of [Women, Infants & Children](#) website or on the WIC Connect App. Printed copies can be ordered from the MDHHS WIC Division using regular ordering procedures.
2. For the Infant Formula Insert in all available languages, please refer to the electronic copy on the WIC Foods Section of [Women, Infants & Children](#) website or on the WIC Connect App. Printed Copies can be ordered from the MDHHS WIC Division using regular ordering procedures.

### References:

7 CFR 246.10

FNS Instruction 804-1

FDA, Health Claim Notification for Whole Grain Foods with Moderate Fat Content at:

<https://www.fda.gov/food/food-labeling-nutrition/health-claim-notification-whole-grain-foods-moderate-fat-content>

WIC Food Guide (DCH-0237)

Infant Formula Insert (DCH-0229)

MCL - Section 287.746 at:

<https://www.legislature.mi.gov/Laws/MCL?ObjectName=MCL-287-746>

### Cross References:

7.01 Food Package Determination and Customization

7.03 Food Package for Qualifying Conditions

7.04 Maximum Food Package

8.06 Client Education on Using Food Benefits